

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.61279 of 2021

Rahat Fateh Ali Khan & others

Versus

Syed Haider Abbas

J U D G M E N T

Date of hearing: 12.05.2026.
Petitioners by: Mr. Gohar Mustafa Qureshi, Advocate.
Respondent by: Rana Muhammad Akram, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- The instant civil revision has been preferred by the petitioners, Rahat Fateh Ali Khan & others, under Section 115 of the Code of Civil Procedure, 1908, calling in question the legality and propriety of the order dated 28.09.2020, whereby their appeal was dismissed by the learned Additional District Judge, Faisalabad on account of non-deposit of court fee amounting to Rs.15,000/-.

2. Briefly stated, the respondent instituted a suit for confirmation of possession through specific performance in respect of a double-storey constructed property bearing No.P-432, measuring 1-Kanal 9-Marla 104 Sq. Ft., situated at Lasoori Shah, Jhang Bazar, Faisalabad. The suit was contested by the petitioners on legal as well as factual grounds; however, after framing issues and recording evidence, the learned Trial Court decreed the suit vide judgment and decree dated 14.05.2019. Feeling aggrieved, the petitioners preferred an appeal before the learned Additional District Judge, Faisalabad. During pendency of the appeal, objection regarding deficient court fee was raised and ultimately, vide impugned order dated 28.09.2020, the appeal was

dismissed on account of non-deposit of the said court fee. Hence, the instant civil revision.

3. Learned counsel for the petitioners contends that the impugned order is harsh, mechanical, and founded upon a purely technical lapse, which ought not to have resulted in dismissal of the appeal on merits. He argues that the petitioners were under a *bona fide* impression that the court fee had been arranged and would be affixed through their counsel, but due to procedural lapse and circumstances beyond their control, the same could not be deposited on the date fixed. He further submits that the learned Appellate Court, instead of adopting a lenient and corrective approach such as granting further opportunity or imposing costs, proceeded to non-suit the petitioners, thereby depriving them of their valuable right of appeal. He adds that the Court fee deficiency was not appropriately and clearly managed at earlier stages, and that sufficient and meaningful opportunity was not afforded after proper quantification, rendering the dismissal violative of settled principles that matters should ordinarily be decided on merits rather than on technical grounds. In support, he has referred to Sardar Ahmed Yar Jang v. Sardar Moor Ahmed Khan (PLD 1994 Supreme Court 688), Hafiz Muhammad Mubeen through Legal Heirs v. Government of Sindh through Deputy Commissioner, Sukkur and 5 others (2014 MLD 419), Habib Akbar v. Pir Azam Syed (2017 YLR 26) and Asghar Ali v. Muhammad Saleem Akhtar and 5 others (2020 YLR 745).

4. Conversely, learned counsel for the respondent supports the impugned order and submits that the petitioners were afforded repeated and sufficient opportunities to deposit the deficient court fee. He adds that no illegality or jurisdictional defect is reflected in the impugned order, rather the same represents a lawful exercise of discretion in response to persistent non-compliance. In support, he has relied upon Assistant commissioner and Land Acquisition Collector, Badin v. Haji Abdul Shakoor and others (1997 SCMR 919), Mrs. Safia Siddiq v. Haji Fazal-ur-Rehman and 2 others (2009 CLC 262), Qazi Muhammad Ilyas and 7 others v. Qazi Muhammad Raees and 3 others

(2014 CLC 160) and Muhammad Tariq and others v. Amjad Ali and others (PLD 2018 Lahore 502).

5. Arguments heard. Record perused.

6. The principal question requiring determination in the instant revision petition is whether the learned appellate Court was justified in dismissing the petitioners' appeal solely on account of non-deposit of deficient court fee amounting to Rs.15,000/-, despite the surrounding circumstances reflected from the record and the procedural safeguards recognized by settled law. While the requirement of payment of court fee is undoubtedly mandatory in character, the exercise of judicial discretion in enforcing such requirement must nevertheless conform to the principles of fairness, proportionality, and substantial justice.

7. A careful examination of the record reveals that the appeal was instituted on 30.10.2019 and remained pending before the learned appellate Court for nearly eleven months before any objection regarding deficient court fee was specifically raised. Although an order regarding court fee appears to have been passed on 07.09.2020, the exact amount of deficiency was not specified therein. The record further demonstrates that the precise amount of deficient court fee, i.e., Rs.15,000/-, was mentioned for the first time on 24.09.2020, whereas the appeal itself came to be dismissed on 28.09.2020.

8. The legal position governing such matters is well-settled that before an appeal or plaint is dismissed on account of deficient court fee, two essential requirements must be satisfied: firstly, the Court must specifically determine and communicate the exact amount of deficiency; and secondly, reasonable opportunity must thereafter be afforded to the party concerned to make up the deficiency. These requirements are not empty formalities but constitute mandatory procedural safeguards intended to ensure that valuable rights are not defeated on account of curable defects. The mode and manner of exercise of judicial discretion in matters relating to deficiency of court fee was elaborately discussed by the august Supreme Court in Habib-

ur-Rehman and others v. Abdul Karim (deceased) through L.Rs and others (2025 SCMR 1262), in the following terms:

“13. ...Section 149, C.P.C., is an exception to the command delineated under Sections 4 and 6 of the Court Fees Act, 1870. The exercise of discretion by the Court at any stage is, as a general rule, expected to be exercised in favour of the litigant on presenting plausible reasons which may include bona fide mistake in the calculation of the court fee; unavailability of the court fee stamps; or any other good cause or circumstances beyond control, for allowing time to make up the deficiency of court fee stamps on a case to case basis, and the said discretion can only be exercised where the Court is satisfied that sufficient grounds are made out for non-payment of the court fee in the first instance. The expression "at any stage" alluded to in Section 149 accentuates that the deficiency, if any, on account of court fee can be ordered to be made good by the Appellate Court at any stage of proceedings in appeal.

14. The provision delineated under Order VII, Rule 11 and Section 149, C.P.C., must be read collectively and in unison. In case of deficiency in the court fee, the Court cannot dismiss the suit or appeal without pinpointing the inadequacy and then providing a timeline for payment...”

9. The requirement of payment of court fee, though mandatory in character, must be understood within the broader framework of procedural justice. Procedural law is intended to facilitate adjudication and determination of rights rather than to obstruct access to justice through rigid or disproportionate application of technical rules. The Court Fees Act, 1870, being essentially fiscal in nature, is designed for recovery of revenue and orderly regulation of proceedings, and not for punitive extinguishment of substantive rights. Where a defect is curable, and the revenue interest of the State can be safeguarded through subsequent deposit along with compensatory costs, the Court must adopt a balanced approach by harmonizing procedural discipline with the demands of substantial justice.

10. In the present case, although the learned appellate Court ultimately specified the amount of deficiency on 24.09.2020, the appeal was dismissed within a span of only four days thereafter. The petitioners have pointed out that the intervening period was affected by prevailing disruptions due to the COVID-19 pandemic as well as a

strike observed by the local Bar. Even otherwise, the cumulative effect of such circumstances materially curtailed the effective opportunity available to the petitioners. In these circumstances, it cannot safely be concluded that a meaningful and reasonable opportunity, in the legal sense, had been afforded before the drastic consequence of dismissal was enforced.

11. It is equally significant that the right of first appeal occupies an important position within the hierarchy of civil adjudication. Although such right is statutory in origin, once conferred it assumes the character of a valuable substantive right. Deprivation of such right on account of a curable procedural lapse must, therefore, be approached with circumspection. Denial of appellate adjudication without examination on merits is a serious consequence and is ordinarily to be avoided unless the conduct of the defaulting party reflects deliberate disregard, contumacy, or abuse of process. In Muhammad Dawood v. Mst. Sakeena Farooque alias Aziza and others (2025 SCMR 1229), the august Supreme Court has discussed the importance of right of appeal in the following words:

“9. It is a well settled exposition of law that a right of appeal is a right of entering into a superior court and invoking its aid and interposition to redress the error of the forum below. It is essentially a continuation of the original proceedings, as a vested right of the litigant to avail the remedy of an appeal provided for appraisal and testing the soundness of the decisions and proceedings of the courts below. It is always explicated and elucidated that the right of appeal is not a mere matter of procedure but is a substantive right. While considering matters in appeal, the appellate courts may affirm, modify, reverse, or vacate the decision of lower courts. Fundamentally, the remedy of appeal is elected on the grounds of attack that the court below committed a serious error in the verdict on law and facts, including the plea of misreading or non-reading of evidence led by the parties in support of their contentions.”

12. Another important aspect emerging from the record is that the appeal remained pending for a considerable period without any objection regarding court fee deficiency. The object of the Court Fees Act is essentially fiscal and regulatory, aimed at securing revenue and

ensuring orderly administration of judicial proceedings. It is not intended to operate as a punitive mechanism for extinguishment of substantive rights where the defect is curable and compensable without prejudice to the opposite party.

13. On the date of dismissal, an application for adjournment had been filed on behalf of the petitioners. Although the learned appellate Court noticed the existence of such application, no independent adjudication was undertaken thereupon before dismissal of the appeal. The principle of *audi alteram partem* extends not only to final adjudication but also to procedural stages where adverse consequences are likely to ensue. Judicial propriety required conscious consideration of such application with reasons, even if the same was to be declined. The omission to do so reflects a procedural irregularity affecting the fairness of the decision-making process.

14. At the same time, this Court cannot overlook that the petitioners were not entirely vigilant in prosecuting their appeal, as deficiency in court fee persisted despite earlier directions. Judicial indulgence cannot be extended so as to encourage negligence or casual disregard of procedural obligations. However, in the peculiar circumstances of the case, including delayed specification of deficiency, limited time thereafter, procedural lapse in dealing with the adjournment application, and the prevailing pandemic situation, the cumulative effect persuades this Court that the ends of justice would be better served by restoration of the appeal subject to imposition of compensatory costs.

15. The administration of justice is not served by terminating proceedings on account of curable procedural defaults where adequate compensation can be secured through costs and no irreversible prejudice is demonstrated. Equally, procedural discipline cannot be compromised under the guise of substantial justice. The proper judicial approach lies in maintaining a balance between enforcement of

procedural obligations and preservation of substantive rights through imposition of realistic and compensatory costs.

16. It is by now well settled that revisional jurisdiction under Section 115, C.P.C. may be invoked where a subordinate Court, though acting within jurisdiction, exercises such jurisdiction with material irregularity resulting in failure of justice. The cumulative circumstances noted above, when viewed together, do disclose material procedural irregularity resulting in failure of justice warranting corrective interference by this Court so that the lis between the parties may ultimately be resolved on merits rather than defeated on account of a curable procedural defect.

17. For the foregoing reasons, this civil revision is **allowed**. The impugned order dated 28.09.2020 passed by the learned Additional District Judge, Faisalabad, is hereby **set aside** and the appeal is restored to its original number, subject, however, to payment of compensatory costs amounting to Rs.100,000/- by the petitioners to the respondent and deposit/affixation of deficient court fee, if not already deposited. The aforesaid costs as well as deficient court fee shall be deposited before the learned Appellate Court within **fifteen (15) days** from the date of first appearance of the parties, whereafter the costs shall be released to the respondent. In the event of failure to comply with either of the aforesaid conditions within the stipulated period, this revision petition shall be deemed to have been dismissed automatically without any further order from this Court. Upon compliance of the above conditions, the learned Appellate Court shall proceed to decide the appeal strictly on merits, in accordance with law, without being influenced by any observation made herein, as the observations contained in this judgment are confined solely to the procedural legality of the impugned dismissal order. The appeal shall preferably be decided within a period of **two (02) months** from the date of first appearance of the parties, particularly keeping in view that the lis pertains to the year 2012. The parties are directed to appear before the

learned lower Appellate Court on **02.06.2026**. A copy of this judgment be transmitted to the said Court for information and compliance.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.